

Ram Padarath Gupta v. U.P. Power Corporation Ltd. & 4 Others

Allahabad High Court · Division Bench · 5 September 2017 · 2017 SCC OnLine All 1979 · Writ - C No. 40690 of 2017 · **Writ petition disposed of; objections to be decided under Clause 6.5 r/w s.126; recovery subject to outcome**

HEADNOTE

A grievance about the rate category on which electricity dues are charged — here a consumer with a 2KW domestic connection allegedly billed at commercial rates — and the consumer's objections filed after a recovery citation, must be examined by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003. Where the consumer alleged there was no consideration of his objections and no final order of assessment served on him, the Court directed the Executive Engineer to examine the matter and pass an order on the objections (if not already passed) within three weeks, the recovery proceedings being subject to the outcome.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Rate-category/billing objection to be decided by the Executive Engineer before recovery

QUESTION

Where a consumer disputes the rate category and says his objections were never decided and no final assessment served, should recovery proceed?

HOLDING

No, not before the objections are decided. The matter (a domestic 2KW connection allegedly billed at commercial rates) must be examined by the Executive Engineer under Clause 6.5 read with s.126, and an order passed on the objections within three weeks; the recovery proceedings are subject to the outcome of that order. ¶ 5

LIMITING FACTS

Recovery citation issued; consumer alleged objections filed but not considered, and no final order of assessment served on him.

PRINCIPLE TAGS

relegate-to-statutory-remedy A rate-category/billing grievance and the consumer's objections are for the Executive Engineer under Clause 6.5 r/w s.126; recovery abides that decision. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION IS DOMESTIC OR COMMERCIAL AND THE CORRECT DUES

Left to the Executive Engineer to examine under Clause 6.5 r/w s.126; the Court expressed no view. ¶ 5